PETITION - RETROACTIVE FIRST OFFENDER TREATMENT, EXONERATION AND DISCHARGE UNDER Sec. 42-8-66

[C2 - court of conviction] Court and county in which the conviction was entered:
.....
STATE OF GEORGIA

STATE OF GEORGIA,
v.
Maria-Alejandra O'Shaughnessy-Whitfield, DEFENDANT/PETITIONER.

Original criminal case number:
.....

A. THE CONTROLLING ROUTE AND ITS GATE

This is the participant-filed petition for retroactive First Offender treatment, exoneration and discharge under O.C.G.A. Sec. 42-8-66. It is filed in the court in which the conviction was entered, in the original criminal matter unless the receiving clerk requires an ancillary number.

Written prosecutorial consent is required BEFORE the individual files. Consent is a prerequisite, not the final relief. A phone call, an unanswered request, prosecutor silence or 'no known objection' is not written consent.

[C1 - required written consent document] The verified written prosecutorial consent, joinder or signed consent endorsement is attached:
.....

B. THE PETITIONER AND ORIGINAL MATTER

Name: Maria-Alejandra O'Shaughnessy-Whitfield
Date of birth: 1968-12-31

[C3 - original matter record] What are the original judgment, sentence and disposition?
.....
.....

C. THE FACTS REQUIRED BY THE COMMITTED ROUTE RECORD

Fill every item from verified records. If an answer is uncertain, stop and get legal help instead of filing.

[C4 - original eligibility] Was the petitioner eligible for First Offender treatment at the time?
.....
.....

[C5 - statutory branch] Which Sec. 42-8-66 branch applies?
.....
.....

[C6 - prior history] Is there any prior felony or prior First Offender history?
.....
.....

[C7 - prior qualifying order] Has a qualifying order already been granted, and on what date?
.....
.....

D. REQUEST FOR RELIEF

After the required written consent, the petitioner asks this Court to decide whether the statutory eligibility and interests-of-justice showing has been made and to grant retroactive First Offender treatment, exoneration and discharge under O.C.G.A. Sec. 42-8-66.

The petitioner understands that a hearing is held if the petitioner or prosecutor requests one, or if the Court wants one.

DATE ..... SIGNATURE OF PETITIONER .....

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield
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FILING INSTRUCTIONS - GEORGIA Sec. 42-8-66 RETROACTIVE FIRST OFFENDER PETITION

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

THE REQUIRED GATE

Written prosecutorial consent is required BEFORE filing. The document must be verified written consent, joinder or a signed consent endorsement held as a document. A phone call, an unanswered request, prosecutor silence or 'no known objection' does not satisfy the gate.

THE THREE CONTROLLING ROUTE OPTIONS

1. CONSENT PRESENT, AND NO QUALIFYING ORDER ALREADY GRANTED: after verified written prosecutorial consent exists, the participant files the Sec. 42-8-66 petition in the court of conviction. The court independently decides the statutory eligibility and interests-of-justice showing.
2. CONSENT ABSENT OR DISPUTED: do not generate or file the petition. Use an attorney or prosecutor handoff. Refusal, silence, an unanswered request and 'no known objection' are not consent; withdrawn consent defeats the filing.
3. QUALIFYING ORDER ALREADY GRANTED ON OR AFTER JULY 1, 2026: do not generate a second merits or sealing petition. The route moves to restriction, sealing, agency distribution and verification tracking.

WHAT THIS PACKET SUPPLIES AND WHAT YOU OBTAIN

PACKET SUPPLIES:
- petition for retroactive First Offender treatment, exoneration and discharge;
- proposed order (court decision and signing lines left blank);
- hearing-request election (choose one option and sign personally);
- certificate of service or local notice document (complete for the local procedure); and
- filing instructions and post-order restriction, sealing and verification instructions.

YOU OBTAIN:
- verified written prosecutor consent, joinder or signed consent endorsement;
- judgment, sentence and disposition records;
- evidence of original First Offender eligibility;
- evidence supporting the applicable Sec. 42-8-66 branch; and
- rehabilitation and interests-of-justice exhibits.

The supplied documents do not replace these records or establish that consent exists.

WHERE TO FILE

File in the court of conviction. Use the original criminal matter and preserve its original caption and case number unless the receiving clerk requires an ancillary number.

WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

O.C.G.A. Sec. 42-8-66 imposes no filing fee; no fee waiver is needed.

WHO MUST BE SERVED, AND WHO IS NOTIFIED

The committed route record calls for a certificate of service or local notice document but does not state a universal recipient or method. Confirm the local notice and service requirement with the clerk of the court of conviction before filing; do not guess.

WHEN TO STOP AND GET HELP INSTEAD

- written consent is absent or disputed;
- original First Offender eligibility is uncertain;
- prior felony or First Offender history is unclear;
- the prosecutor withdraws consent;
- the court requires a contested evidentiary hearing; or
- immigration, firearm, federal or licensing consequences require advice.

PROPOSED ORDER - RETROACTIVE FIRST OFFENDER TREATMENT, EXONERATION AND DISCHARGE UNDER Sec. 42-8-66

Court of conviction and county: .....
STATE OF GEORGIA
v. Maria-Alejandra O'Shaughnessy-Whitfield, DEFENDANT/PETITIONER.
Original criminal case number: .....

Use the original criminal caption and case number unless the receiving clerk requires an ancillary number.

PROPOSED ONLY - FOR THE COURT. This unsigned proposed order is not a grant of relief. The participant does not decide, sign or date it.

The petition for retroactive First Offender treatment, exoneration and discharge under O.C.G.A. Sec. 42-8-66 is before the Court. Written prosecutorial consent is a prerequisite, not the final relief. The Court independently decides the statutory eligibility and interests-of-justice showing.

Court decision (court enters GRANTED or DENIED):
.....
Court findings and scope of relief: .....
.....

RESTRICTION AND COURT-RECORD SEALING
If retroactive discharge is granted and entered on or after July 1, 2026, the current restriction and court-record sealing duties apply. The Court addresses those duties for this matter in the directions below; the participant must not supply a judicial decision or assume that an unsigned proposed order restricts or seals records.

Restriction directions and records covered (court only):
.....
.....
Court-record sealing directions and records covered (court only):
.....
.....
Agency distribution directions (for court use only): .....
.....

JUDICIAL OFFICER SIGNATURE: .....
DATE ENTERED: .....

HEARING-REQUEST ELECTION - Sec. 42-8-66 PETITION

Court of conviction and county: .....
STATE OF GEORGIA
v. Maria-Alejandra O'Shaughnessy-Whitfield, DEFENDANT/PETITIONER.
Original criminal case number: .....

Use the original criminal caption and case number unless the receiving clerk requires an ancillary number.

Choose one option for the petition accompanying this election. Neither option is selected for you.

[ ] I request a hearing.
[ ] I do not request a hearing.

A hearing is held if the petitioner or prosecutor requests one, or if the court wants one. Choosing not to request a hearing does not prevent the prosecutor from requesting one or the court from holding one.
If the court requires a contested evidentiary hearing, stop self-help and get legal help; that is advocacy, not document preparation.

SIGNATURE OF PETITIONER: .....
DATE SIGNED: .....
PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

CERTIFICATE OF SERVICE OR LOCAL NOTICE - Sec. 42-8-66 PETITION

Court of conviction and county: .....
STATE OF GEORGIA
v. Maria-Alejandra O'Shaughnessy-Whitfield, DEFENDANT/PETITIONER.
Original criminal case number: .....

Use the original criminal caption and case number unless the receiving clerk requires an ancillary number.

Before using this document, confirm the local notice and service requirement, recipient, method and timing with the clerk of the court of conviction. The held route record states no universal recipient or method. Follow the clerk-confirmed local procedure; do not guess or certify an act before it happens.

The blanks below are completed before filing this certificate, at the time required locally; this packet does not establish that service must precede the petition.
Complete the following only for service or notice actually completed:

I certify that I provided the documents identified below to the recipient, by the method and on the date stated.

Documents provided: .....
Recipient (name and address or other delivery destination):
.....
.....
Method of service or notice: .....
Date of service or notice: .....

SIGNATURE OF PERSON COMPLETING SERVICE OR NOTICE:
.....
PRINTED NAME OF THAT PERSON: .....
DATE SIGNED: .....

AFTER THE ORDER - RESTRICTION, SEALING, DISTRIBUTION AND VERIFICATION

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

1. OBTAIN THE ENTERED ORDER

Ask the clerk of the court of conviction for the entered order and confirm its entry date, decision and scope. Written prosecutorial consent and an unsigned proposed order are not a court grant. If the decision, scope or date is unclear, obtain clarification rather than assuming relief.

2. FOLLOW THE ORDER THAT WAS ENTERED

For a retroactive discharge entered on or after July 1, 2026, follow the current restriction and court-record sealing duties addressed in the order. Confirm the applicable restriction, sealing and agency distribution steps with the clerk of the court of conviction, using the actual entered order. Do not guess recipients, procedures or which records are covered.

3. CONFIRM DISTRIBUTION AND RECORD UPDATES

Ask that clerk which offices are responsible for implementing the order and how to confirm distribution and completion. Keep the entered order and any proof of distribution and record updates. Confirm the restriction and sealing status with the clerk and the record-holding offices identified by the order or clerk; do not treat a grant alone as proof that every record has been updated.

4. VERIFICATION, NOT ANOTHER MERITS PETITION

Do not file a second merits or sealing petition after retroactive treatment has already been granted. The next work is implementation and verification of the entered order. If the order is denied, disputed or unclear, get legal help about next steps; this page does not decide a new remedy.

Immigration, firearm, federal and licensing consequences require advice. This packet does not establish those consequences or promise that every record will disappear.